

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STELLIO NEDEROVIQUE,

Petitioner

VS.

JELENA SMITH,

Respondent

) Case Number: FDV-25-818547

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Stellio Nederovique and Respondent Jelena Smith. The parties are not married and they used to date. The parties do not have minor children in common. Petitioner is represented by attorney Yosef Peretz. To date, Respondent has not made an appearance in this matter.
- 2) Several hearing dates transpired between 8/15/2025 and 12/5/2025 during which Petitioner stated he was having trouble getting Respondent served. On 10/31/2025, Judge Gold made a finding that Respondent is evading service and required Petitioner to serve Respondent by email or text.
- 3) On 12/5/2025, following a hearing during which Respondent was not present, a 2-year Restraining Order After Hearing was granted for Petitioner's protection against Respondent.
- 4) On 5/5/2026, the Court granted an ex parte request by Petitioner that he be permitted to have Respondent served with the restraining order by alternate means. The Court ordered that service of the restraining order be accomplished by email and text "and to known social media account(s) via messenger or comparable method of communication."

1 5) Now on for hearing is Petitioner's Request for Order filed 3/18/2026 asking the Court to award
2 him \$65,645 in attorney's fees and \$7,342.10 in costs under Family Code section 6344.

3 6) There is no Proof of Service on file showing service of Petitioner's 3/18/2026 Request for Order.
4 However, the Court notes that in Petitioner's attorney's declaration filed 3/18/2026, Petitioner
5 requests that the Court authorize alternative service.

6 **B. Findings and Order**

7 1) The hearing on Petitioner's Request for Order filed 3/18/2026 is hereby continued to **Tuesday,**
8 **7/21/2026 at 9:00 AM in Dept. 404.**

9 2) At least 20 calendar days prior to the next hearing date, Petitioner shall file and serve a
10 declaration explaining why he believes (pursuant to Family Code section 6344(c)) that
11 Respondent has or is reasonably likely to have the ability to pay the fees and costs requested.
12 Petitioner shall include in his declaration statements addressing whether he believes Respondent
13 has any assets or debts; whether Respondent was employed or self-employed during their dating
14 relationship (and what profession); how much he believes Respondent was earning at the time;
15 and how Respondent covered her expenses during their dating relationship. Petitioner shall also
16 state whether he believes Respondent is currently employed or self-employed (and what
17 profession).

18 3) Petitioner's request for an alternative service method is hereby granted. Petitioner shall serve the
19 following documents on Respondent by email:

- 20 a. His Request for Order and all related pleadings (including the declaration the Court is
- 21 requiring the Petitioner to file regarding Respondent's ability to pay)
- 22 b. Copy of the Tentative Ruling Instructions
- 23 c. Blank Responsive Declaration
- 24 d. Findings and Order After Hearing for the 5/12/2026 hearing date.

25 4) Petitioner's attorney shall also send a text message to Respondent and send direct message(s) to
26 Respondent's known social media account(s) informing her of the next hearing date, informing
27 her that Court documents were emailed to her which include a motion for attorney's fees, and
28 informing her of the amount in attorney's fees that Petitioner is requesting.
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- 1 5) In advance of the next hearing date, Petitioner shall file a Proof of Service evidencing compliance
2 with the order set forth above (and Petitioner's attorney shall attach to the Proof of Service
3 screenshots of the text and other direct messages to Respondent).
- 4 6) Petitioner's attorney shall prepare the Findings and Order After Hearing.
- 5 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
6 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
7 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
8 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
9 proposed order after hearing directly to the court. Failure to submit the order after hearing within
10 10 days may allow the other party to prepare a proposed order and submit it to the court in
11 accordance with CA Rules of Court, Rule 5.125(d).
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